



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

July 24, 2020

POLICE COMMISSIONER'S PENALTY DEPARTMENT

Re: CCRB Case No. 201903895 regarding Police Officer Alfredo Brewster, Tax No. [REDACTED]
(DADS No. 2020-22090) and Sergeant Dan Ast, Tax No. [REDACTED] (DADS No. 2020-22091)

Dear Mr. Darche:

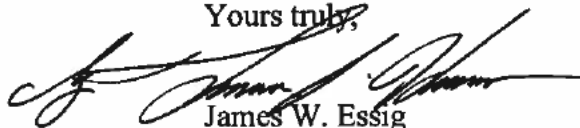
The Police Commissioner has reviewed the facts and circumstances of this matter, including video evidence. While the Police Commissioner agrees that the search of the individual in this matter meets the strict definition of a strip search as per the Patrol Guide, the actions of both Police Officer Brewster and Sergeant Ast does not rise to the level of a Schedule "B" Command Discipline under these specific circumstances.

Here, Police Officer Brewster was searching an individual arrested for possession of a firearm and was attempting to utilize the metal detector to safely and appropriately determine whether the arrested individual possessed further weapons or contraband before being placed into a holding cell. It was clear from the video that the officer's intent was to discover why the metal detector kept signaling when placed near the individual's groin area. While this type of search would have been more appropriately performed in a private setting and should have been documented, there was no mal intent on the officer's behalf. It was also clear from the record that Sergeant Ast was unclear that the exposing of the underwear was, by strict definition, a strip search and should have been documented.

Therefore, the Police Commissioner has determined that Police Officer Brewster and Sergeant Ast each receive a Schedule "A" Command Discipline which would sufficiently address their respective actions in this matter.

If you have any questions, please feel free to contact me at [REDACTED]

Yours truly,

A handwritten signature in black ink, appearing to read 'James W. Essig', written over the printed name.

James W. Essig

Assistant Chief

Commanding Officer

Police Commissioner's Office

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POLICE COMMISSIONER'S OFFICE